

Santosh Kumar v. U.P. State Power Corporation Limited

High Court of Judicature at Allahabad · Division Bench · 14 November 2022 · WRIT - C No. - 28053 of 2022 · **Writ disposed; petitioner relegated to Clause 6.5 representation**

HEADNOTE

A writ over electricity dues against U.P. State Power Corporation Limited was disposed of by relegating the consumer to a Clause 6.5 representation before the Executive Engineer, Power Supply Division, Rajapur, District Chitrakoot, to be decided by a reasoned speaking order in accordance with law.

FACTUAL SUMMARY

Santosh Kumar petitioned the Allahabad High Court against U.P. State Power Corporation Limited and three others over electricity dues. On 17 October 2022 the Division Bench found counsel for the Corporation missing from the cause list and directed listing as fresh. On 1 November 2022 that counsel sought an adjournment and the writ was again listed as fresh. When the petition was called on 14 November 2022, counsel for the department had entered appearance.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

electricity dues — Clause 6.5 representation

HOLDING

The remedy for a writ dispute as to electricity dues is a proper representation to the Executive Engineer, Power Supply Division, Rajapur, District Chitrakoot under Clause 6.5 of the U.P. Electricity Supply Code, 2005. If filed within three weeks with a copy of the order, that authority must decide expeditiously by a reasoned speaking order strictly in accordance with law, preferably within four weeks. The writ is disposed of without examining the dues on merits. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Court disposed of the writ on electricity dues by sending the consumer to the Clause 6.5 forum instead of deciding the bill. ¶ 1

clause-6.5-representation-executive-engineer The competent authority named is the Executive Engineer, Power Supply Division, Rajapur, District Chitrakoot (respondent no. 3), to be approached by a proper representation raising all grievances. ¶ 1

6.5-representation-as-appropriate-remedy Clause 6.5 was treated as the appropriate statutory path for the dues dispute; a representation filed within three weeks must be decided by a reasoned speaking order, preferably within four weeks. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY DUES

The Court did not examine the bill or dues on merits and remitted the consumer to Clause 6.5. ¶ 1